

**SAP Open Ecosystem
Master Partner Agreement**

This SAP Open Ecosystem – Master Partner Agreement (“**Master Open Ecosystem Agreement**”) is between SAP PERU S.A.C., with offices at Av. Circunvalación del Club Golf Los Incas No. 154, Piso 16, Oficina No. 1601, Santiago de Surco, Lima, Perú (hereinafter “**SAP**”) and Gestion de Negocios R&S Asociados SAC, with offices at Av. San Borja Norte 772, 051 Lima, Peru (hereinafter “**Open Ecosystem Partner**”), together referred to as “**Parties**”.

Article 1 Preamble

Whereas, SAP offers software, cloud services and associated services such as maintenance services.

Whereas, by signing this Master Open Ecosystem Agreement Open Ecosystem Partner wants to become an SAP open ecosystem partner.

Whereas, by signing the relevant SAP Open Ecosystem Schedule(s) Open Ecosystem Partner and SAP will decide as a second step which kind of SAP software, SAP cloud services or other associated SAP services Open Ecosystem Partner wants to market, distribute, position or provide.

Now therefore, the Parties agree as follows:

Article 2 Definitions and Interpretation

1. Definitions

“**Agreement**” means this Master Open Ecosystem Agreement, any SAP Open Ecosystem Schedule, any SAP Open Ecosystem Model, any document, exhibit, appendix and annex included in, attached to or referenced to in any SAP Open Ecosystem Schedule, any SAP Open Ecosystem Model or both as well as any agreement listed in Article 3 (Incorporation by reference) no. 1a) to d); whereby one Agreement consists of one SAP Open Ecosystem Schedule, the SAP Open Ecosystem Model it refers to (in both cases including any document, exhibit appendix and annex included in, attached to, or referenced in either or both), this Master Partner Agreement and any agreement listed in Article 3 (Incorporation by reference) no. 1a) to d) and will be constituted and construed as a separate Agreement.

“**Effective Date**” means the date on that the last signature was affixed to this Master Open Ecosystem Agreement.

“**SAP Open Ecosystem Model**” means each of the different “SAP Open Ecosystem Specific Terms and Conditions” that SAP and Open Ecosystem Partner agree on by signing a related SAP Open Ecosystem Schedule. A general list of available “SAP Open Ecosystem Specific Terms and Conditions” and the related “SAP Open Ecosystem Schedules” can be found in Appendix 1 and updates to Appendix 1 on SAP’s partner-dedicated website.

“**SAP Open Ecosystem Schedule**” means any “SAP Open Ecosystem Schedule” concluded by SAP and Open Ecosystem Partner. A general list of available “SAP Open Ecosystem Specific Terms and Conditions” and the related “SAP Open Ecosystem Schedules” can be found in Appendix 1 and updates to Appendix 1 on SAP’s partner-dedicated website.

2. Any terms not defined in this Master Open Ecosystem Agreement will have the meaning ascribed to them in other parts of this Agreement.

3. The headings in this Master Open Ecosystem Agreement are for convenience only and are to be ignored in construing this Master Open Ecosystem Agreement.

4. Any reference in this Master Open Ecosystem Agreement to a defined document is a reference to that defined document as amended, varied, novated or supplemented from time to time.

5. Where the context so admits, the singular includes the plural and vice versa.

Article 3 Incorporation by reference

1. The following agreements are incorporated and made a part hereof by reference:

- a) the “SAP PartnerEdge – General Terms and Conditions for Open Ecosystem” for Peru which is made available on www.sap.com/company/legal (“**Open Ecosystem GTCS**”);
- b) the “SAP Open Ecosystem Program Guide” which is published on SAP’s partner-dedicated website (“**Open Ecosystem Program Guide**”);
- c) the “SAP PartnerEdge Branding and Logo Usage Guideline for Partners” which is published on SAP’s partner-dedicated website (“**PartnerEdge Branding Guide**”); and
- d) any exhibit, schedule, appendix, annex or other document, included in, attached to or referenced to in any of the agreements listed in this Article 3 (Incorporation by reference) no. 1a) to c) above.

2. Open Ecosystem Partner herewith confirms that he had access to all parts of and read the agreement listed in this Article 3 (Incorporation by reference) no. 1a) to d) and will comply with the terms and conditions of these agreements. SAP recommends Open Ecosystem Partner prints copies of the agreements referred to in this Article 3 (Incorporation by reference) for its own records.

Article 4 Condition Precedent

1. This Master Open Ecosystem Agreement is conditional upon the Parties concluding at least one SAP Open Ecosystem Schedule for at least one of the SAP Open Ecosystem Models. Any rights and obligations of the Parties arising out of or in connection with this Master Open Ecosystem Agreement will only become effective if at least one SAP Open Ecosystem Schedule has been signed.

2. This Master Open Ecosystem Agreement will terminate on the date on which the last SAP Open Ecosystem Model was terminated, rescinded or ended in any other way between SAP and Open Ecosystem Partner. All of the agreements listed in Article 3 (Incorporation by reference) no. 1a) to d) will terminate at the same time as this Master Open Ecosystem Agreement.

IN WITNESS WHEREOF, the Parties hereto have caused this Master Open Ecosystem Agreement to be executed by their respective authorized representatives

Accepted By:
SAP PERU S.A.C.
(SAP)

Accepted By:
Gestion de Negocios R&S Asociados SAC
(Partner)

Name: Jose Antonio Del Rio Aramburú
Title:
Date:

Name:
Title:
Date:

Name: Raymundo Salas
Title:
Date:

Name:
Title:
Date:

Appendix 1**Overview over available SAP Open Ecosystem Specific Terms and Conditions and related SAP Open Ecosystem Schedules**

	SAP Open Ecosystem Schedules	SAP Open Ecosystem Specific Terms and Conditions	Short description of SAP Open Ecosystem Model
1.	SAP Open Ecosystem Sell On Premise Schedule ("Sell On Premise Open Ecosystem Schedule")	SAP Open Ecosystem Sell On Premise Specific Terms and Conditions ("Sell On Premise Open Ecosystem Model")	Open Ecosystem Partner wants to resell certain SAP on premise software and position SAP delivered support to End Users